

24NNCV02446 24NNCV02446

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-08-07

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Case Number: 24NNCV02446 Hearing Date: August 7, 2026 Dept: T

Mikayel

Israyelyan vs Krikor Bardakjian

Demurrer

to Plaintiff's First Amended Complaint

Moving Party: Defendant

Amwest Funding Corporation

Responding Party: Plaintiff

Mikayel Israyelyan

Tentative Ruling: Sustain

in part, overrule in part

BACKGROUND

On June 21, 2024, Plaintiff Mikayel Israyelyan ("Plaintiff") filed a complaint for partition of real property and accounting against Defendant Krikor Bardakjian ("Bardakjian"). Plaintiff alleges that both parties are each 50% owners of real property at 485 Cliff Drive, Pasadena, CA 91107 ("Property"). (Complaint ¶ 1.)

On April 1, 2026, upon the filing of a joint stipulation, and for good cause shown, the Court entered an order granting Plaintiff leave to file an amended complaint.

On April 17, 2026, Plaintiff filed

a first amended complaint ("FAC") against Defendants Bardakjian, Amwest Funding Corporation and Arcstone Financial, Inc., and Does 3 through 10, seeking partition of the Property and accounting.

Defendant Amwest Funding Corporation
("Defendant") now demurs to each of Plaintiff's cause of action for failure to state facts sufficient to constitute a cause of action.

Plaintiff opposes. No reply was filed.

MOVING PARTY POSITION

Defendant
argues that Plaintiff failed to plead facts sufficient to constitute a partition cause of action based on the failure to join Havenhurst Developments, LLC, as an indispensable party to the action.

Defendant
argues that Plaintiff failed to plead facts sufficient to state a cause of action for accounting as there are no facts showing that Plaintiff is entitled to an account from Defendant based on the loan secured by Bardakjian.

OPPOSITION

Plaintiff initially contends that Defendant's failure to meet and confer warrants denial of the demurrer.

Plaintiff contends that the Defendant cannot seek a demurrer based on the nonjoinder of Havenhurst Developments, LLC, as a party to the action.

Plaintiff
contends that the FAC adequately states a cause of action for accounting based on the alleged actions of Bardakjian in securing the loan from Defendant against the Property.

REPLY

No reply was filed.

ANALYSIS

I. Legal

Standard

A. Demurrer

A demurrer is a pleading used to test the legal sufficiency of other pleadings. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading (complaint, answer or cross-complaint). (Code Civ. Proc. §§ 422.10, 589; see, also, *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) It is not the function of the demurrer to challenge the truthfulness of the complaint; and for purposes of the ruling on the demurrer, all facts pleaded in the complaint are assumed to be true. (*Donabedian*, supra, 116 Cal.App.4th at 994.)

The general rule is that the plaintiff need only allege ultimate facts, not evidentiary facts. (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) "All that is required of a plaintiff, as a matter of pleading, even as against a special demurrer, is that his complaint set forth the essential facts of the case with reasonable precision and with sufficient particularity to acquaint the defendant with the nature, source and extent of his cause of action." (*Rannard v. Lockheed Aircraft Corp.* (1945) 26 Cal.2d 149, 156-157.)

In a demurrer, the court "may also look to exhibits attached to the complaint for operative facts. [Citation.] And because the 'allegations that we accept as true necessarily include the contents of any exhibits attached to the complaint, . . . in the event of a conflict between the pleading and an exhibit, the facts contained in the exhibit take precedence over and supersede any inconsistent or contrary allegations in the pleading.' [Citation.]" (*Nealy v. County of Orange* (2020) 54 Cal.App.5th 594, 596–97.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy*

(1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

II. Meet and Confer

Although the parties dispute whether a sufficient meet and confer took place prior to the filing of the instant demurrer, “[a] determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer.” (Code Civ. Proc. § 430.41, subd. (a)(4).)

III. Discussion

A. Partition of Real Property

“[P]artition is the procedure for segregating and terminating common interests in the same parcel of property. [Citation.]” (Summers v. Superior Court (2018) 24 Cal.App.5th 138, 142, internal quotations omitted.) Partition is a remedy “much favored by the law” and originally intended to permit cotenants to avoid the inconvenience and dissension arising from joint possession of land. (Ibid., internal quotations omitted.)

Code of Civil Procedure section 872.230 requires that a complaint for partition set forth the following: (1) a description of the property; (2) the plaintiff’s property interests; (3) the claimed interests in the property of other persons that plaintiff actually knows or reasonably believes the partition action will materially affect; (4) the estate for partitioning and a prayer for partitioning those interests; and (5) facts justifying any sale sought of the property.

Code of Civil

Procedure section 872.510 also requires joinder of “all persons having or claiming interests of record or actually known to the plaintiff or reasonably

apparent from an inspection of the property, in the estate as to which partition is sought.” And the Legislative Committee Comment to that section states:

Section 872.510

supersedes former Section 754 (no person having a lien or “conveyance” need be made a party unless of record). Under Section 872.510, only persons having interests in the estate or estates as to which partition is sought need be joined. This provision is elaborated in the succeeding sections of this article. It should be noted that “interest” includes liens and that joinder of additional parties may be necessary under Section 389 (mandatory joinder).

Code of Civil

Procedure section 389 provides that “a person who is subject to service of process and whose joinder will not deprive the court of jurisdiction over the subject matter of the action shall be joined as a party in the action if (1) in his absence complete relief cannot be accorded among those already parties or (2) he claims an interest relating to the subject of the action and is so situated that the disposition of the action in his absence may (i) as a practical matter impair or impede his ability to protect that interest or (ii) leave any of the persons already parties subject to a substantial risk of incurring double, multiple, or otherwise inconsistent obligations by reason of his claimed interest. If he has not been so joined, the court shall order that he be made a party.” (Code Civ. Proc. § 389, subd. (a).)

Given these

requirements for stating a partition action, the Court initially notes that Plaintiff’s argument in opposition regarding waiver is misplaced, as the failure to name all of the claimed interests in the Property constitutes a factual deficiency that renders the partition cause of action insufficiently stated.

As Section

872.510 governs the partition action at issue here, Plaintiff is required to name and join all persons having or claiming interests in the Property, including those actually known to Plaintiff or whose interest is reasonably apparent. Accordingly, given the alleged facts that Plaintiff and Bardakjian, through their limited liability company, secured mortgage loans from Havenhurst Developments, LLC, (“Havenhurst”) in the amounts of \$300,000

and \$400,000 for the purchase of the Property in 2018, and that only a portion of this amount may have been satisfied by the loan allegedly issued by Defendant, Plaintiff's failure to identify Havenhurst as a having an interest in the Property renders the cause of action deficient on its face. (FAC ¶¶ 14, 17–18; Code Civ. Proc. § 872.230, subd. (c).)

Thus, the demurrer to the first cause of action is sustained with leave to amend.

B. Accounting

A cause of action for accounting requires the following elements: (1) the existence of a relationship requiring accounting, such as fiduciary; and (2) the existence of some unliquidated and unascertained balance that is owed. (St. James Church of Christ Holiness v. Superior Court (1955) 135 Cal.App.2d 352, 359; Raymond v. Independent Growers, Inc. (1955) 133 Cal.App.2d 154, 160; Kritzer v. Lancaster (1950) 96 Cal.App.2d 1, 7 [“[A] cause of action for accounting need only state facts showing the existence of the relationship which requires an accounting and the statement that some balance is due the plaintiff.”]; Teselle v. McLoughlin (2009) 173 Cal.App.4th 156, 179 [“[A] fiduciary relationship between the parties is not required to state a cause of action for accounting. All that is required is that some relationship exists that requires an accounting.”].)

Given Plaintiff's well-pleaded factual allegations concerning Bardakjian's alleged use of the Property as security for the loan that Bardakjian obtained from Defendant, as well as the alleged fact that Plaintiff owns 50% of the Property, the Court finds that the FAC states facts sufficient to establish the existence of a relationship between Plaintiff and Defendant that may give rise to an accounting.

Thus, the demurrer to the second cause of action is overruled.

RULING

Defendant

Amwest Funding Corporation's Demurrer to Plaintiff's First Amended Complaint is SUSTAINED IN PART as to the first cause of action with leave to amend and is otherwise OVERRULED.

